P.05.25_6, Rue du Cimetière

Usman Ramay <usmanramay@gmail.com> Wed, Jan 29, 2025 at 7:15 PM
To: Project ATAM <project@atam.lu>

Hi Almir,
I can not agree to either of those two options, I understand you want to make more money than what we agreed contractually but I find this approach very unprofessional.

1. We **still** don't even know if 4 apartments are even possible [Evidence: the new contract and email you sent me this morning promising to lower the price if 4 apartments are in fact not possible] so it is clear that we have not even completed the analysis part of the original contract yet. This is also in line with what we clearly agreed verbally in all our meetings that there is no change of plan or contract till we have at least a directional okay from the commune, which we still do not have. [Evidence: your email to the commune after our meeting on monday and their response].

2. I never asked you for a drawing of a 4 apartment building, I simply shared my opinions on whatever you chose to send me. We still don't even know what building extension is possible (Evidence: last email to and from the commune) which is the first step even for a simple house extension so we have definitely not done any 'extra' work.

3. The reason we 'talked a few times' is because what you sent me was neither aligned with what we discussed (suggesting to demolish the building) nor with the regulations of the commune (extending both to the front and back). [Evidence: My email reply to you on 12th of January and the follow up call].

I am therefore not willing to pay any extra payment than what we had agreed to contractually. I have also not asked you so far to reduce the price because of the delays (contract said December we are at the end of January already). As you mentioned yourself on monday this is common practise in case of delays.

The original agreement also clearly states that if possible (which is likely the case) the plan should be for a 3 apartment building without any extra payment, I am willing to be flexible on this only IF we can still complete our original agreement quickly and amicably. The alternative of you returning the advance (4,387.5 Euros) and canceling the contract is not my preferred option, so I hope we don't have to go there.

Are you okay with respecting the original contract and continuing to work together amicably?

Thanks,
Usman

[English translation of our signed contract]

Purpose of the project:

The extension of the garden level and the extension of the ground floor level and the addition of a recessed floor.

The plan will contain the possibility and will be organized in such a way as to later make a vertical cadastre for a Building of 2 official Apartments.

The possibility of making a 3rd apartment will be analyzed and is dependent on municipal regulations and on-site possibilities.

The analysis of the demand for a 5-apartment building will be made in this request and a new offer is to be issued for a project of this scale.

The project owner undertakes to continue the collaboration with the same architectural firm for the different options analyzed by the architect and together the two parties will discuss the different modalities.

The established project cannot be used by another architectural firm since it remains the intellectual property of ATAM.

Any changes to the project schedule must be clearly communicated in advance and the scope of the project and procedures must be adapted.

Remarks:

A cadastral or topographical measurement of the existing plot by a surveyor may be necessary or requested by the municipal administration; the related costs are the responsibility of the project owner.

Additional requests from the administration or from the client are to be offered separately not being part of the project program or special requests will have to be offered separately.

Requests that contain the same program are included in the price.

Feasibility depends on municipal regulations and feasibility of execution.

[Quoted text hidden]